

25STCV35256 25STCV35256

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Case Number: 25STCV35256 Hearing Date: September 21, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September
21, 2026

CASE NAME: Katarina

Removic, et al. v. Essex Cochran, LP, et al.

CASE NO.: 25STCV35256

MOTION

FOR LEAVE TO FILE CROSS-COMPLAINT

MOVING PARTY: Defendants

Essex Cochran, LP; Essex Property Trust, Inc.; and Essex Management Corporation

RESPONDING PARTY(S): Plaintiffs Katarina Removic,
Slobodan Kovacevic, and Katya Kovacevic

REQUESTED RELIEF:

1. An

order granting leave to file a cross-complaint against Plaintiff Removic and
Fenn Termite and Pest Control, Inc.

TENTATIVE RULING:

1. Motion

for leave to file cross-complaint is GRANTED;

2. Defendants

to file their cross-complaint within 7 days of this ruling.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On December 3, 2025, Plaintiffs Katarina Removic, Slobodan Kovacevic, and Katya Kovacevic by and through her Guardian ad Litem Katarina Removic (Plaintiffs) filed a complaint against Defendants Essex Cochran, LP, Essex Property Trust, Inc., and Essex Management Corporation (Defendants) with causes of action for: (1) negligence; (2) tortious breach of implied warranty of habitability; (3) breach of the implied warranty of habitability; (4) private nuisance; (5) breach of covenant of quiet enjoyment; (6) violation of Civ. Code § 1942.4; (7) intentional infliction of emotional distress; (8) violation of the UCL; (9) unlawful retaliatory eviction; and (10) violation of the Los Angeles Municipal Tenant Anti-Harassment Ordinance (TAHO).

According to the complaint, Plaintiffs were tenants pursuant to a written lease at property owned and/or managed by Defendants. Plaintiffs allege various habitability issues with the property that caused injuries and of which they formally complained to the Los Angeles Housing Department and Defendants. Plaintiffs allege that as a result of these complaints, Defendants harassed Plaintiffs.

On March 3, 2026, Defendants filed an answer.

On July 9, 2026, Defendants filed the instant motion for leave to file a cross-complaint. On September 8, 2026, Plaintiffs filed an opposition. On September 11, 2026, Defendants filed a reply.

LEGAL STANDARD:

A cross-complaint may be either permissive or compulsory.

Compulsory cross-complaints are based on allegations arising out of the same transactions or occurrences as the causes of action which the plaintiff alleges in his or her complaint. (Code Civ. Proc., (CCP) § 426.10, subd.

(c).) Compulsory cross-complaint causes of action must exist at the time an answer to the original cross-complaint is required. (CCP § 426.30, subd. (a).) All other cross-complaints are permissive. (CCP § 428.10.) If a party fails to file any cross-complaint before or when they file an answer, they must move the court for leave to file a cross-complaint. (CCP § 428.50.) The court "shall" grant leave to file a compulsory cross-complaint, as long as the party demonstrates that, notwithstanding being late, the motion for leave is brought in good faith. (CCP § 426.50.) The court "may" grant leave to file a permissive cross-complaint "in the interest of justice at any time during the course of the action." (CCP § 428.50, subd. (c).)

A policy of liberal construction of section 426.50 to avoid forfeiture of causes of action is imposed on the trial court. (Silver Orgs. v. Frank (1990) 217 Cal. App. 3d 94, 98-99.) A motion to file a cross-complaint at any time during the course of the action must be granted unless substantial evidence of bad faith is demonstrated. (Ibid.)

ANALYSIS:

Defendants contend leave to file a cross-complaint is warranted because it is a compulsory cross-complaint, there is no bad faith, there will be no prejudice in allowing the cross-complaint to be filed, and judicial economy is served by allowing the filing.

Plaintiffs argue Defendants blew their deadline without good cause, their unexplained delay coupled with demonstrably false excuse is bad faith, seeks to enforce a void provision in the lease, and the claims against Fenn Termite are not compulsory (a standard Defendants did not address at all).

Defendants reply that there is no bad faith in Defendants' delay due to counsel's oversight and lack of investigation of all claims at the time Defendants filed their answer. They reiterate their other arguments.

Compulsory vs.

Permissive

Cross-complaints against parties other

than plaintiff, i.e., co-defendant or a third person not yet party to

the action, are permissive only. (See CCP § 428.10.)

A defendant can cross-complain against such non-plaintiff only if the cause of action

asserted in the cross-complaint “(1) arises out of the same transaction,

occurrence, or series of transactions or occurrences [set forth in the complaint]

... or (2) asserts a claim, right, or interest in

the property or controversy which is the subject of the cause [of action]

brought against him.” (CCP § 428.10(b).)

;

Here, the proposed cross-complaint is compulsory.

Critically, it contains claims against Katarina Removic (a plaintiff) that

arise out of the same transaction and occurrence as alleged in the underlying

complaint (the written lease agreement). There are also claims for indemnity

against a third-party, Fenn. However, the court is unaware of authority that

provides for a mixed cross-complaint.

Thus, this is a compulsory cross-complaint.

Bad Faith;

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“Bad faith,” is defined as “[t]he opposite of ‘good faith,’

generally implying or involving actual or constructive fraud, or a design to

mislead or deceive another, or a neglect or refusal to fulfill some duty or

some contractual obligation, not prompted by an honest mistake . . . , but by

some interested or sinister motive[.] . . . not simply bad judgment or

negligence, but rather . . . the conscious doing of a wrong because of

dishonest purpose or moral obliquity; . . . it contemplates a state of mind affirmatively

operating with furtive design or ill will.” [Citation.]’ [Citations.]’

[Citation.]” (Silver Organizations Ltd.

v. Frank (1990) 217 Cal.App.3d 94, 100.)

Here, there is no evidence of bad faith. Notably,

Defendants’ counsel admits to their own oversight or delay in analyzing the

contracts at issue in the proposed cross-complaint. (Declaration of Richard A.

Muench ¶¶ 4, 5, 6.) There is no evidence Defendants consciously did wrong or

were dishonest. Plaintiffs' other challenges concern validity and are more appropriately determined at demurrer or summary judgment.

Thus, there is no bad faith.

Undue Prejudice

Here, there is no undue prejudice. First, Defendants filed this motion four months after filing their answer. The court is not convinced this is a serious delay. Second, trial is not set until 2028 which provides plenty of time for the parties to appear and conduct discovery.

Thus, there is no undue prejudice.

Accordingly, the court GRANTS Defendants' motion for leave to file a cross-complaint.

CONCLUSION:

For

the foregoing reasons, the Court decides the pending motion as follows:

1. Motion

for leave to file cross-complaint is GRANTED;

2. Defendants

to file their cross-complaint within 7 days of this ruling.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 21, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court